ORDINANCE NO. 588

AN ORDINANCE ACCEPTING THE ANNEXATION OF CERTAIN TERRITORY TO THE CITY OF RECTOR OF ARKANSAS; APPROVING THE SCHEDULE OF SERVICES TO BE EXTENDED TO SAID AREA; AND ASSIGNING SUCH TO WARD, AND FOR OTHER MATTERS

WHEREAS, a petition was filed, pursuant to Ark. Code Annotated Section 14-40-601, et. seq. for the annexation of certain territory into the City of Rector, Arkansas; and

WHEREAS, the majority of the landowners have prepared a complete and accurate petition as set forth in Ark. Code Ann. Section 14-40-601, et. seq.; and

WHEREAS, the property is contiguous with the City of Rector; verified that no enclaves will be created if the Petition is accepted by the City, and presented the petition to their respective Clay County Judge; and

WHEREAS, the County Judge held a county court proceeding on July 2, 2025, has (A) reviewed the Petition and verifications for completeness and accuracy; (B) determined that no enclaves will be created by the annexation; (C) confirmed that the Petition contains a schedule of services; (D) found that the land to be annexed is in accordance with the Statute and (E) issued an Order articulating these findings and forwarded the Petition to the City of Rector for considerations; and

WHEREAS, it is the desire of the City of Rector Council that said territory be annexed.

NOW THEREFORE BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, STATE OF ARKANSAS

SECTION 1. That the following described territory, contiguous to the City of Rector, be and the same is hereby accepted as part of, and annexed to and made a part of the City of Rector, Arkansas.

See Exhibit A.

SECTION 2. That the tract of land does not require any additional water or sewer services to be added and that police and fire will begin immediately upon approval of annexation.

SECTION 3. That the above-described territory shall be annexed to and make a part of each contiguous ward of the City of Rector, and the same shall henceforth be a part of said ward as fully as existing parts of said ward. If said property abuts a portion of more than one ward, the portion that abuts a majority of either possible ward shall be the ward that is designated the annexed parcel.

SECTION 4. Thirty (30) days after passage and publication or posting of this Ordinance as authorized by law, the annexation shall be final and the property shall be

within the corporate limits of the City of Rector, except as otherwise ordered by the Circuit Court pursuant to a cause of action filed within said thirty (30) day period.

SECTION 5. Notice. Within forty-five (45) days of the effective date of this ordinance the city clerk shall provide written notice, along with complete documentation, to the county clerk of each county in which the territory is affected.

Passed and approved this 11th day of SEPTEMBER 2025.

City Clerk

Mayor of Rector

EXHIBIT A

Parcel #051-03050-000E

Owner: City of Rector

Legal description:

A 20.0 acre tract of land lying in the N ½, SE ¼, SW ¼ of Section 26, T-19-N, R-7-E, Clay County, Arkansas, and being more particularly described as follows:

Commencing at an iron pipe being the Northwest corner of the S1/2 NE ¼ SW ¼ of said Section 26; said point being the Northwest corner of the City of Rector Property; thence South along the West line of the S1/2 NE ¼ SW ¼ a distance of 660.0 feet to the point of beginning; said point being the Southwest corner of said City property; thence East along the North line of the N ½ SE ¼ SW ¼ of said Section 26 and along the South line of the existing City property a distance of 1320.00 feet to a point; Set point lying in the centerline of the existing drainage ditch; thence South a distance of 660.00 feet; thence W a distance of 1320.00 feet; thence North a Distance of 660.00 feet to the point of beginning, containing 20.0 acres, more or less, including all public rights of way lying within and adjoining the above described area.

Parcel #151-04170-000E & 151-04171-000E

Owner: Water Implement District 1

Legal Description:

All of Block Two (2) in Morris' Second Addition to the City of Rector, Arkansas, including all public rights of way lying within and adjoining the above described area.

Parcel # 051-03045-000E

Owner: City of Rector

Legal Description:

The South one-half of the Northeast Quarter of the Southwest Quarter (S ½, NE ¼, SW ¼) of Section Twenty-six (26), Township Nineteen (19) North, Range Seven (7) East of the Fifth Principal Meridian containing 20 acres, More or less, in the Eastern District of Clay County, Arkansas, including all public rights of way lying within and adjoining the above described area.

Parcel # 051-03044-000E

Owner: City of Rector

Legal Description:

The Southeast Quarter of the Northwest Quarter (SE ¼ NW ¼) of Section Twenty-Six (26), Township Nineteen (19) North, Range Seven (7) East EXCEPT the following described tract; Beginning at the Northeast corner of the said Southeast Quarter of the Northwest of Section Twenty-Six (26), running thence South 705 feet, thence West 903 feet, thence North 705 feet, thence East 903 feet to the point of beginning; Also, the North Half of the Northeast Quarter of the Southwest Quarter (N ½ NE ¼ SW 1/4) of Section Twenty-Six (26), Township Nineteen (19) North, Range Seven (7) East, in the Eastern District of Clay County, Arkansas, including all public rights of way lying within and adjoining the above described area.

Parcel #151-04169-000E

Owner: City of Rector

Legal Description:

All of Block One (1) in Morris' Second Addition to the City of Rector, Arkansas, including all public rights of way lying within and adjoining the above described area.

Parcel # 151-04175-000

Owner: City of Rector

Legal Description:

Tract I:

Ninety (90) feet off and cross the entire West end of Lots Seventeen, Eighteen, Nineteen, Twenty, Twenty-one, Twenty-two, Twenty-three and Twenty-four (17, 18, 19, 20, 21, 22, 23, & 24) in Block Four (4) of the Morris Second Addition to the Town of Rector, Arkansas, including all public rights of way lying within and adjoining the above described area.

Tract II:

All of Blocks Five and Six (5 &) of Morris' Addition to the City of Rector, Arkansas, including all public rights of way lying within and adjoining the above described area.

Parcel # 151-04172-000

Owner: Bobby Joe and Farren Young

Legal Description:

All of Blocks Three and Four (3 & 4) of Morris Second Addition of the Town of Rector, Arkansas, LESS AND EXCEPT a tract of land being more particularly described as follows: Ninety (90) feet off and across the entire West end of Lots Seventeen, Eighteen, Nineteen, Twenty, Twenty-one, Twenty-two, Twenty-three, and Twenty-four (17, 18, 19, 20, 21, 22, 23, & 24) in Block Four (4); and LESS AND EXCEPT a tract of land being described as follows: The East One Hundred (100) feet of Lots One, Two, Three, Four, Five, Six, Seven, and Eight (1, 2, 3, 4, 5, 6, 7, & 8) in Block Four (4) in the City of Rector, Arkansas, including all public rights of way lying within and adjoining the above described area.

Parcel # 151-04173-000

Legal Description:

Owner: Farren Young

The East 100' of Lots 1-8 in Block 4 of Morris Second Addition in the Eastern District of Clay County, Arkansas, including all public rights of way lying within and adjoining the above described area.